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TAB 7



Board of Education Report

File #: Rep-267-23/24, **Version:** 1

Authorization to Negotiate and Enter into Agreements with Six Organizations for the Construction of Greening Projects on a Portion of 34 School Sites

May 7, 2024

Facilities Services Division and Eco-Sustainability Office

Action Proposed:

Authorize the Chief Facilities Executive and/or her designee to negotiate and enter into development and maintenance agreements, and any other reasonable instruments deemed necessary, with six nonprofit organizations for the construction of greening projects, as described in Exhibit A, on 34 school sites:

- Hollywood Beautification Team for the construction of greening projects at Haddon Avenue STEAM Academy (Haddon ES), Sharp Avenue Elementary School (Sharp ES), Telfair Elementary School (Telfair ES), and O'Melveny Elementary School (O'Melveny ES);
- Los Angeles Neighborhood Land Trust for the construction of greening projects at 10th Street Elementary School (10 St. ES), 93rd Street Elementary School (93rd St. ES), Bell High School (Bell HS), Esperanza Elementary School (Esperanza ES), and Figueroa Street Elementary School (Figueroa ES);
- Earth Island Institute for the construction of a greening project at 122nd Street Elementary School (122nd St. ES);
- North East Trees, Inc. for the construction of greening projects at Farmdale Elementary School (Farmdale ES), Florence Nightingale Middle School (Nightingale MS), Garvanza Elementary Technology and Leadership Magnet (Garvanza Technology & Leadership Magnet ES), Latona Avenue Elementary School (Latona ES), Loreto Street Elementary School (Loreto ES), Malabar Street Elementary School (Malabar ES), and Monte Vista Street Elementary School (Monte Vista ES);
- Tree People, Inc. for the construction of greening projects at Charles W. Barrett Elementary School (Barrett ES), Parmelee Avenue Elementary School (Parmelee ES), State Street Elementary School (State ES), Independence Elementary School (Independence ES), 74th Street Elementary School (74th St. ES), Eastman Avenue Elementary School (Eastman ES), Florence Avenue Elementary School (Florence ES), Grape Street Elementary School (Grape ES), Lillian Street Elementary School (Lillian ES), Miles Avenue Elementary School (Miles ES), and Vista del Valle Dual Language Academy (Vista del Valle Dual Language Academy), 116th Street Elementary School (116th St. ES); and
- Trust for Public Land for the construction of greening projects at Sheridan Street Elementary School (Sheridan ES), Hollenbeck Middle School (Hollenbeck MS), Utah Street Span School (Utah Span School), Raymond Avenue Elementary School (Raymond ES), and Barack Obama Global Preparation Academy (Obama Global Preparation Academy).

The proposed projects are anticipated to provide each school with improvements such as green infrastructure, improved shade canopy, educational amenities, educational garden, nature play areas, and walking paths to advance Los Angeles Unified School District's (Los Angeles Unified or District) goal of 30% greening standard, as outlined in the District's Green Schoolyards For All Plan (project details included in Exhibit A).

Background:

The California Department of Forestry and Fire Protection (CAL FIRE) Resource Management Grant Programs (Grantor), has established various programs to add green spaces and trees to communities to increase health and climate benefits, reduce greenhouse gas emissions, mitigate extreme heat, and provide enhanced learning environments in school communities (Greening Programs).

The 34 greening projects are collaborations between the Los Angeles Unified School District (Los Angeles Unified or District) and third-party organizations that applied directly to the Grantor and were awarded design and construction funding to develop projects at District schools. The six partner organizations proposing to construct greening projects on a portion of 34 Los Angeles Unified school sites (Project Proposers) are the official grantees of the Greening Program funding and are required to submit supporting documentation to demonstrate their ability to carry out the greening projects. For projects developed on property not owned by the Project Proposers, the Grantor requires agreements with the property owner giving the Project Proposers legal access and permission to construct and maintain the project on the property. The Grantor will not disperse any grant funds prior to the execution and subsequent submittal of such agreements.

The greening projects will be constructed by the Project Proposers and will be solely funded by the Grantor with potential matching funds from the Project Proposers. The improvements will be owned by Los Angeles Unified upon completion of construction.

Exhibit A includes the proposed greening projects for each of the 34 schools including Board District, Region, school site, Project Proposers, project descriptions, Grantor, the corresponding grant program funding amounts, anticipated construction start and finish dates, and maintenance obligations per the Grant where applicable.

Expected Outcomes:

Adoption of the proposed action will enable staff to execute the development and maintenance agreements with the Project Proposers and subsequently enable the Grantor to disburse funding to the Project Proposers for the greening projects.

Board Options and Consequences:

Adoption will permit Los Angeles Unified to negotiate and execute development and maintenance agreements, and any other reasonable instruments deemed necessary to allow the Project Proposers to proceed with the design and construction of the greening projects.

If not adopted, the Project Proposers will be unable to secure the Greening Program funding from their respective Grantor. Furthermore, the projects will not proceed and students, staff, and the community will not benefit from the greening improvements that are proposed to be undertaken.

Policy Implications:

The proposed action advances Pillar 2 Joy and Wellness Welcoming Learning Environments of the Los Angeles Unified 2022-2026 Strategic Plan by constructing greening projects at District schools. Additionally, it supports the Los Angeles Unified's Green Schoolyards for All Plan and several Los Angeles Unified Board Resolutions including the Creating New School Gardens and Campus and Community-Shared Green Spaces to Provide

Outdoor Learning Opportunities and Create Sustainable and Healthy Environments Resolution, the Expand Sustainable Schoolyards and Environmental Initiatives and Curriculum Resolution, as well as the Green Schools for All: Equitable Funding and Expansion of Green Spaces across District Campuses Resolution.

Budget Impact:

The activities associated with negotiating and executing development and maintenance agreements with the Project Proposers require staff time from the Eco-Sustainability Office, Facilities Services Division and the Office of the General Counsel. Los Angeles Unified funding is not needed to implement the proposed greening projects. The Project Proposers will fully fund the greening projects including, but not limited to, the planning, design, review, testing, inspection, construction, and ancillary costs required by Los Angeles Unified, with the Grant Program funding awarded by the Grantor. Any potential cost increases associated with the greening projects are the sole responsibility of the Project Proposers. If the Project Proposers are unable to fund the greening projects as scoped, a value engineering approach will be implemented to ensure the completion of the projects.

Los Angeles Unified will be responsible for maintaining the areas upgraded by the greening projects in accordance with its annual Maintenance and Operations (M&O) budget, standards, and specifications. Los Angeles Unified will not be obligated to increase its annual M&O budget to provide additional maintenance for the greening projects at the 34 schools. The greening projects will be added to the District's existing inventory and maintained with funding and resources available to Los Angeles Unified to the degree permitted at any particular time. Maintenance of the greening projects will not cause an additional impact to Los Angeles Unified's General Fund.

Student Impact:

The greening projects, once complete, will provide the students attending the 34 schools with various improvements that help promote learning and may include additional green space, shade, outdoor learning environments, native plants, and shade trees, as well as removal of asphalt.

Equity Impact:

School sites were selected by Project Proposers with priority given to schools located in disadvantaged communities or low-income communities as identified by CalEnviroscreen 4.0, schools in which 70% or more of the students are eligible for free or reduced-price meals, and schools with an unduplicated student count of free/reduced-price meals, English learners & foster youth of 70% or more per California Department of Education.

Issues and Analysis:

Staff has reached an agreement with the Project Proposers on the material terms of the development and maintenance agreements for the design, construction, and maintenance of the greening projects. The material terms of the development and maintenance agreements are as follow:

1. The greening projects require compliance with all laws, rules, regulations, and standards for public school construction, the cost of which will be borne solely by the Project Proposers, including, but not limited to:
 - a. The Field Act and all other applicable Division of the State Architect (DSA) requirements, such as accessible path-of-travel to comply with the Americans with Disabilities Act (ADA).
 - b. Requirements, including improvements that arise from the Department of Toxic Substance

- Control (DTSC) and California Environmental Quality Act (CEQA) review, which shall be conducted under the oversight of the Los Angeles Unified's Office of Environmental Health and Safety (OEHS).
- c. Los Angeles Unified facilities standards, design standards, and technical specifications for construction, as well as compliance with all design review and approval processes. Specifically, the greening projects shall not infringe upon or reduce outdoor physical education areas and/or teaching stations, impact fire life and safety and emergency areas, or conflict with the campus master plan.
 - d. The architect, construction manager, general contractor, or multiple prime contractors, engineers, consultants, and professionals retained for the greening project shall be licensed, as applicable, and in good standing and authorized to do business in the State of California. In addition, the general contractor must be on Los Angeles Unified's Safety Prequalified list.
 - e. The greening projects shall satisfy Los Angeles Unified requirements with regard to construction on a school site, including, but not limited to, the payment of prevailing wages (unless the Project Proposers can provide an exemption from the Department of Industrial Relations with regard to the payment of prevailing wages) and a performance bond in an amount no less than one hundred percent (100%) of the construction cost of the greening projects, and the use of Los Angeles Unified Inspectors certified by DSA. The cost for the Inspectors will be paid by the Project Proposer.
2. The Grantor stipulate that all projects constructed with Grant Program funding shall be maintained and operated for various periods as noted in Exhibit A. With regard to the maintenance of the greening projects, the Project Proposers and Los Angeles Unified acknowledge that:
- a. The greening projects will be designed in such a way to, among other things, minimize the M&O burden thereof on Los Angeles Unified, reduce any adverse impact to the school, and provide future flexibility to Los Angeles Unified and the schools.
 - b. All planting material will be drought tolerant and/or as low maintenance as possible to maximize tree and shrub survivability and the Project Proposers may be required to replace planting material (shrubbery and similar materials but not fields and decomposed granite material, if any) for the first six months and trees for up to one year after installation, at Project Proposer's sole cost.
 - c. Other than the Project Proposer's obligation to replace planting material, Los Angeles Unified will maintain the greening project areas in accordance with (and to the degree permitted by) its annual M&O budget, and standards and specifications at the time (as they may change during the required term of the Grant Program). Los Angeles Unified shall not be obligated to increase its annual M&O budget to account for the addition of the greening projects in the inventory of sites/areas serviced. The greening projects will be added to the District's existing inventory and maintained with, and to the degree permitted by, funding and resources available to Los Angeles Unified at any particular time.
 - d. The Project Proposers will continue to work with Los Angeles Unified, and in particular the school principal, and other third parties to identify additional opportunities to support the

greening projects.

- e. The Project Proposers shall indemnify, defend and hold harmless Los Angeles Unified from and against any claims, damages, costs, expenses or other liability of any kind (particularly the liability to repay the Grantor for all or a portion of the Grant Program funding) arising from any claim or finding by the Grantor (or any agency or instrumentality thereof, including, without limitation, any state or local court) that the Project Proposers have failed to comply with any term or condition of the Grant Program.
3. Upon completion of the greening projects, the improvements will be owned by Los Angeles Unified.
 4. If, upon completion of the greening projects, the Project Proposers request to make the greening project areas of the schools available for public use, staff will present a separate proposal to the Board for approval.

Attachments:

Exhibit A - Overview of 34 Proposed Greening Projects for the State of California Department of Forestry and Fire Protection (CAL FIRE) Resource Management Grant Program

Informatives:

None

Submitted:

04/16/24

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RESPECTFULLY SUBMITTED,



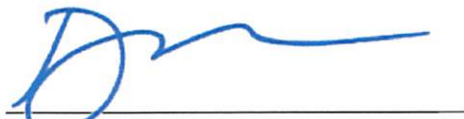
ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

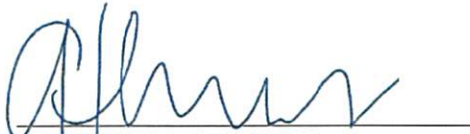
REVIEWED BY:



DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:



KRISZTINA A. TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:



NOLBERTO DEGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

APPROVED BY:



CHRISTOS CHRYSILIOU
Chief Eco-Sustainability Officer
Eco-Sustainability Office

PRESENTED BY:



AARON BRIDGEWATER
Director of Facilities Planning and Development
Facilities Services Division

Overview of 34 Proposed Greening Projects for the California Department of Forestry and Fire Protection (CAL FIRE) Resource Management Grant Program

BD	Board Member	Region	School Site	Project Proposers	Project Description	Grant Program Funding	Anticipated Construction Start	Anticipated Construction Completion	Maintenance Obligation
1	Dr. George J. McKenna III	South	Figueroa ES	Los Angeles Neighborhood Land Trust	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$2,468,667	3Q-2025	1Q-2026	2 years
1	Dr. George J. McKenna III	South	Barrett ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,198,183	1Q-2025	1Q-2026	3 years
1	Dr. George J. McKenna III	South	74th St. ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$717,896	1Q-2025	1Q-2026	3 years
1	Dr. George J. McKenna III	South	Raymond ES	Trust for Public Land	Removal of asphalt, planting of trees, as well as providing green infrastructure, improved shade canopy, educational amenities, educational garden, nature play areas, and walking paths.	\$2,473,201	1Q-2025	1Q-2026	2 years
1	Dr. George J. McKenna III	South	Obama Global Preparation Academy	Trust for Public Land	Removal of asphalt, planting of trees, as well as providing green infrastructure, improved shade canopy, educational amenities, educational garden, nature play areas, and walking paths.	\$2,472,096	1Q-2025	1Q-2026	2 years
2	Dr. Rocío Rivas	East	10th St. ES	Los Angeles Neighborhood Land Trust	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$2,470,585	3Q-2025	1Q-2026	2 years
2	Dr. Rocío Rivas	East	Esperanza ES	Los Angeles Neighborhood Land Trust	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,228,482	3Q-2025	1Q-2026	2 years
2	Dr. Rocío Rivas	East	Farmdale ES	North East Trees, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$334,339	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Nightingale MS	North East Trees, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$603,204	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Garvanza Technology & Leadership Magnet ES	North East Trees, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$311,060	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Latona ES	North East Trees, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$246,276	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Loreto ES	North East Trees, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$301,756	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Malabar ES	North East Trees, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$392,987	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Monte Vista ES	North East Trees, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$280,405	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Eastman ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,268,376	1Q-2025	1Q-2026	3 years
2	Dr. Rocío Rivas	East	Sheridan ES	Trust for Public Land	Removal of asphalt, planting of trees, as well as providing green infrastructure, improved shade canopy, educational amenities, educational garden, nature play areas, and walking paths.	\$2,457,601	1Q-2025	1Q-2026	2 years
2	Dr. Rocío Rivas	East	Hollenbeck MS	Trust for Public Land	Removal of asphalt, planting of trees, as well as providing green infrastructure, improved shade canopy, educational amenities, educational garden, nature play areas, and walking paths.	\$2,472,102	1Q-2025	1Q-2026	2 years
2	Dr. Rocío Rivas	East	Utah Street Span School	Trust for Public Land	Removal of asphalt, planting of trees, as well as providing green infrastructure, improved shade canopy, educational amenities, educational garden, nature play areas, and walking paths.	\$2,500,000	1Q-2025	1Q-2026	2 years
5	Jackie Goldberg	East	Bell HS	Los Angeles Neighborhood Land Trust	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$2,451,969	3Q-2025	1Q-2026	2 years

Overview of 34 Proposed Greening Projects for the California Department of Forestry and Fire Protection (CAL FIRE) Resource Management Grant Program

BD	Board Member	Region	School Site	Project Proposers	Project Description	Grant Program Funding	Anticipated Construction Start	Anticipated Construction Completion	Maintenance Obligation
5	Jackie Goldberg	East	State ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$790,166	1Q-2025	1Q-2026	3 years
5	Jackie Goldberg	East	Independence ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,341,770	1Q-2025	1Q-2026	3 years
5	Jackie Goldberg	East	Lillian ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,180,970	1Q-2025	1Q-2026	3 years
5	Jackie Goldberg	East	Miles ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,323,154	1Q-2025	1Q-2026	3 years
6	Kelly Gonez	North	Haddon ES	Hollywood Beautification Team	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$740,195	3Q-2024	4Q-2025	3 years
6	Kelly Gonez	North	Sharp ES	Hollywood Beautification Team	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$740,689	1Q-2025	1Q-2026	3 years
6	Kelly Gonez	North	Telfair ES	Hollywood Beautification Team	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$687,709	2Q-2024	4Q-2025	3 years
6	Kelly Gonez	North	O'Melveny ES	Hollywood Beautification Team	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$500,617	1Q-2025	1Q-2026	3 years
6	Kelly Gonez	North	Vista del Valle Dual Language Academy	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,250,000	1Q-2025	1Q-2026	3 years
7	Tanya Ortiz Franklin	South	122nd St. ES	Earth Island Institute	Installing a variety of improvements and greening elements which may consist of, among other things, the installation of shade trees, gardens, irrigation, mulch, and natural elements such as stumps, logs, and boulders to create a schoolyard forest.	\$340,000	2Q-2024	2Q-2025	2 years
7	Tanya Ortiz Franklin	South	93rd St. ES	Los Angeles Neighborhood Land Trust	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$2,469,390	3Q-2025	1Q-2026	2 years
7	Tanya Ortiz Franklin	South	Parmelee ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$1,055,761	1Q-2025	1Q-2026	3 years
7	Tanya Ortiz Franklin	South	116th St. ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$535,328	1Q-2025	1Q-2026	3 years
7	Tanya Ortiz Franklin	East	Florence ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$628,143	1Q-2025	1Q-2026	3 years
7	Tanya Ortiz Franklin	South	Grape ES	Tree People, Inc.	Removal of asphalt, planting of trees, addition of gardens, and construction of unstructured play space to create “living schoolyards”	\$882,275	1Q-2025	1Q-2026	3 years